

AVISO License Agreement

Open License for AVISO Data Products

ACCEPTED — Issue 20 — August 2026 · Public

Effective Date: August 10, 2026

Note on legal nature of this license. This license is inspired by the structure and plain-language conditions of Creative Commons Attribution 4.0 International (CC-BY 4.0). It is not CC-BY 4.0 itself: CC-BY 4.0 does not permit a licensor to add extra conditions (such as a restriction on bulk redistribution), so calling this document "CC-BY 4.0" would misstate the rights it grants. This is a distinct license — the AVISO License — that CNES has designed to give users CC-BY-like freedoms (use, share, adapt, including for commercial purposes) while retaining one CNES-specific condition on bulk/operational redistribution of the original data, described in Section 3.2 below.

Preamble

CNES (Centre National d'Études Spatiales) wants to make AVISO Data Products available for the widest possible use, including commercial use, while ensuring that:

- users of the material are properly attributed and their reliance on CNES/AVISO as source is clear;
- CNES retains the ability to operate AVISO as the reference distribution point for these products, rather than having them re-platformed wholesale by third parties without authorization;
- CNES's disclaimers of warranty and limitations of liability apply to all uses of the material.

This license sets out the terms on which CNES licenses AVISO Data Products to the public. These terms apply regardless of whether the License is referred to as an "open license" or by any other means.

Section 1 – Definitions

- a. AVISO Data Product(s): Products created by the various production systems and entities operating under the AVISO umbrella and made available via the AVISO Catalogue.
- b. Adapted Material: Material subject to Copyright and Similar Rights that is derived from or based upon the Licensed Material, including a Value-Added Product or Derivative Work as defined below.
- c. Value-Added Product: A product modified from an AVISO Data Product while retaining the original source data structure.
- d. Derivative Work: A product derived from AVISO Data Products that does not retain the original pixel/data structure.
- e. Copyright and Similar Rights: Copyright and/or similar rights closely related to copyright, including database rights, without regard to how the rights are labeled or categorized.
- f. Effective Technological Measures: Measures that may not be circumvented under applicable law.
- g. Exceptions and Limitations: Fair use, fair dealing, and/or any other exception or limitation to Copyright and Similar Rights that applies to Your use of the Licensed Material.
- h. Licensed Material: The AVISO Data Product(s) to which the Licensor applied this License.

- i. Licensed Rights: The rights granted to You subject to the terms and conditions of this License.
- j. Licensors: CNES (Centre National d'Études Spatiales), the sole entity authorized to grant the Licensed Rights in AVISO Data Products under this License, acting on behalf of and with the authorization of each product's creator(s) referred to in Section 4. CNES's role as Licensors does not, of itself, confer or imply ownership of the underlying Intellectual Property Rights, which remain with the respective creator(s) as set out in Section 4.
- k. Share: To provide material to the public by any means or process that requires permission under the Licensed Rights, such as reproduction, public display, distribution, dissemination, communication, or importation.
- l. Sui Generis Database Rights: Rights resulting from Directive 96/9/EC of the European Parliament and of the Council on the legal protection of databases, as amended and/or succeeded, as well as other essentially equivalent rights anywhere in the world.
- m. Commercial Use: Any activity involving the sale, licensing, or commercial exploitation of Value-Added Products or Derivative Works based on AVISO Data Products.
- n. Licensee: The individual or entity exercising the Licensed Rights under this License.

Section 2 – Scope

2.1 License Grant

Subject to the terms and conditions of this License, the Licensors grants You a worldwide, royalty-free, non-sublicensable, non-exclusive, irrevocable license to exercise the Licensed Rights in the Licensed Material to:

- A. reproduce and Share the Licensed Material, in whole or in part; and
- B. produce, reproduce, and Share Adapted Material (Value-Added Products or Derivative Works),

for any purpose, including commercial purposes, subject to Section 3 (License Conditions), and — for certain products only — subject to the non-commercial-use note in Section 3.3 and Annex A.

2.2 Exceptions and Limitations

For the avoidance of doubt, where Exceptions and Limitations apply to Your use, this License does not apply, and You do not need to comply with its terms and conditions.

2.3 Term

The license granted under Section 2.1 applies for the duration of the Copyright and Similar Rights licensed here. However, if You fail to comply with this License, then Your rights under this License terminate automatically under Section 6.1. Where Your right to use the Licensed Material has terminated under Section 6.1, it reinstates automatically as of the date the violation is cured, provided it is cured within 30 days of Your discovery of the violation, or as expressly reinstated by the Licensors.

2.4 Media and Formats; Technical Modifications Allowed

The Licensor authorizes You to exercise the Licensed Rights in all media and formats whether now known or hereafter created, and to make technical modifications necessary to do so, including those necessary to circumvent Effective Technological Measures.

2.5 Downstream Recipients

Every recipient of the Licensed Material automatically receives an offer from the Licensor to exercise the Licensed Rights under the terms and conditions of this License. You may not offer or impose any additional or different terms or conditions on the Licensed Material if doing so restricts the exercise of the Licensed Rights by any recipient, except as necessary to comply with Section 3.2 (Distribution Restriction), which You must pass on unmodified to downstream recipients of the original AVISO Data Product.

2.6 No Endorsement

Nothing in this License constitutes or may be construed as permission to assert or imply that You are, or that Your use of the Licensed Material is, connected with, sponsored, endorsed, or granted official status by CNES, AVISO, or any AVISO producer/creator.

Section 3 – License Conditions

Your exercise of the Licensed Rights is expressly made subject to the following conditions.

3.1 Attribution

If You Share the Licensed Material (in whole or in part) or Adapted Material, You must:

- retain, if supplied with the Licensed Material, identification of the creator(s) (the relevant AVISO producer) and CNES as Licensor;
- provide a citation to the source (product name, producer, DOI where applicable);
- include a link to this License, or, if impractical, provide the URI or hyperlink to this License;
- indicate if You modified the Licensed Material and retain an indication of any previous modifications.

You may satisfy these conditions in any reasonable manner based on the medium, means, and context in which You Share the Licensed Material. Where requested by the Licensor, You must remove any of this information as reasonably practicable.

3.2 Distribution Restriction (AVISO-Specific Condition)

You must not Share the Licensed Material, in its original, unmodified form, through any operational platform intended for onward mass distribution — including but not limited to a web portal, public API, or cloud data infrastructure — without prior written authorization from CNES.

This condition:

- applies only to the original, unmodified Licensed Material as distributed by AVISO — it does not restrict Sharing Adapted Material (Value-Added Products or Derivative Works);

- does not restrict internal use, copying for backup, or Sharing with a limited/defined set of collaborators for a specific project;
- does not restrict Sharing of the Licensed Material through scientific publications, figures, or supplementary data accompanying a publication;
- must be passed on, unmodified, to any downstream recipient of the original Licensed Material (Section 2.5).

Requests for authorization to re-distribute AVISO Data Products at scale through an operational platform should be addressed to aviso@altimetry.fr.

3.3 Note on Non-Commercial-Use Products

Certain AVISO Data Products are made available under this License for non-commercial use only, as identified in Annex A (e.g., current fields derived from the latest released version of the FES ocean tide model, and satellite ocean color data products derived using the POLYMER software from HYGEOS). For those specific products, the license granted under Section 2.1(A)–(B) excludes Commercial Use; Commercial Use of those products requires a separate written agreement (contact aviso@altimetry.fr for more information). All other conditions of this License (attribution, distribution restriction) continue to apply to those products.

Section 4 – Sui Generis Database Rights and Intellectual Property

Where the Licensed Rights include Sui Generis Database Rights that apply to Your use of the Licensed Material, the Licensor waives and/or agrees not to assert any right or authority to forbid You from extracting, reusing, reproducing, and sharing all or a substantial portion of the contents of the database, subject to Section 3 (License Conditions).

All Intellectual Property Rights in each AVISO Data Product remain the property of its respective creator(s) — the relevant AVISO producer(s) — and are protected under French and international law. CNES is the sole party authorized to grant the Licensed Rights under this License, acting on behalf of and with the authorization of each such creator; this License grants use rights only, and neither the grant of the License by CNES nor Your exercise of the Licensed Rights transfers or otherwise affects ownership of any Intellectual Property Rights in the Licensed Material. New Intellectual Property Rights arising from Your modification of AVISO Data Products (i.e., in Adapted Material that You create) belong to You, without prejudice to the creator's rights in the underlying Licensed Material.

Section 5 – Disclaimer of Warranties and Limitation of Liability

Unless otherwise separately undertaken by the Licensor, to the extent possible, the Licensor offers the Licensed Material as-is and as-available, and makes no representations or warranties of any kind concerning the Licensed Material, whether express, implied, statutory, or other. This includes, without limitation, warranties of title, merchantability, fitness for a particular purpose, non-infringement, absence of latent or other defects, accuracy, or the presence or absence of errors, whether or not known or discoverable.

To the extent possible, in no event will the Licensor be liable to You on any legal theory (including, without limitation, negligence) or otherwise for any direct, special, indirect, incidental, consequential, punitive, exemplary, or other losses, costs, expenses, or damages arising out of this License or use of the Licensed Material, even if the Licensor has been advised of the possibility of such losses, costs, expenses, or damages.

CNES does not guarantee that AVISO Data Products will be error-free or that access will be uninterrupted.

Section 6 – Term and Termination

6.1 This License applies for the term of the Copyright and Similar Rights licensed here. However, if You fail to comply with this License, then Your rights under this License terminate automatically. In case of breach, CNES may, in addition to automatic termination: issue warnings, suspend access to AVISO systems, pursue legal action for reimbursement of costs, or report violations to law enforcement where applicable.

6.2 Where Your right to use the Licensed Material has terminated under Section 6.1, it reinstates automatically as of the date the violation is cured, provided it is cured within 30 days of Your discovery of the violation, or upon express reinstatement by the Licensor.

6.3 For the avoidance of doubt, the Licensor may also offer the Licensed Material under separate terms or conditions, or stop distributing the Licensed Material at any time; however, doing so will not terminate this License for material already lawfully obtained by You.

6.4 Sections 1, 4, 5, 7, and 8 survive termination of this License.

Section 7 – Other Terms and Conditions

7.1 The Licensor shall not be bound by any additional or different terms or conditions communicated by You, unless expressly agreed.

7.2 Any arrangements, understandings, or agreements regarding the Licensed Material not stated herein are separate from and independent of the terms and conditions of this License.

7.3 Compliance obligations. You must ensure that your staff, students, contractors, and agents comply with this License, and must maintain reasonable records of AVISO Data Product usage where distribution is at scale, to be provided to CNES upon request.

Section 8 – Interpretation

8.1 For the avoidance of doubt, this License does not, and shall not be interpreted to, reduce, limit, restrict, or impose conditions on any use of the Licensed Material that could lawfully be made without permission under this License.

8.2 To the extent possible, if any provision of this License is deemed unenforceable, it shall be automatically reformed to the minimum extent necessary to make it enforceable. If the provision cannot be reformed, it shall be severed from this License without affecting the enforceability of the remaining terms.

8.3 No term or condition of this License will be waived, and no failure to comply consented to, unless expressly agreed by the Licensor.

8.4 Nothing in this License constitutes or may be interpreted as a limitation upon, or waiver of, any privileges and immunities that apply to CNES, or any exemption from legal process.

Section 9 – Governing Law

This License is governed by French law. Disputes arising from or in connection with this License will be resolved by the ICC International Court of Arbitration.

Section 10 – Point of Contact

For inquiries regarding this License, authorization requests under Section 3.2, or non-commercial/commercial licensing requests under Section 3.3, contact: aviso@altimetry.fr.

The latest version of this License is available at:

https://www.aviso.altimetry.fr/fileadmin/documents/data/License_Aviso.pdf.

Annex A – Products Requiring the Non-Commercial-Use Note (Section 3.3)

Product Level	Product Type	Note
Auxiliary Products	Currents from the latest released version of the FES ocean tide model (currently FES2022)	Non-commercial use only under this License; Commercial Use requires a separate agreement with CNES and NOVELTIS.
Value-Added Products	Satellite ocean color data products derived using the POLYMER software from HYGEOS	Non-commercial use only under this License; Commercial Use requires a separate agreement with CNES and HYGEOS.

Note on the FES entry: only the latest released version of the FES tide model carries this restriction. Once a newer version is released, the restriction moves to that new version, and the previous version becomes available under the standard License terms (including for Commercial Use). The AVISO Catalogue is the authoritative source for which FES version is current at any given time.

(All other AVISO Data Products listed in the AVISO Catalogue are licensed under the full terms of Section 2.1(A)–(B), including for Commercial Use, subject to Sections 3.1 and 3.2.)

This document supersedes the AVISO License Agreement, Issue 19 – February 2024, for AVISO Data Products distributed on or after its effective date (August 10, 2026). It does not alter rights already granted under prior versions of the AVISO License for material obtained before that date.